

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wilbur	Team: Team # 3	CCRB Case #: 200810500	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/21/2008 9:20 PM	Location of Incident: On Seaview Ave. near Van Siclen Ave. (outside the Brooklyn Sports Club)	Precinct: 75	18 Mo. SOL 1/21/2010	EO SOL 1/21/2010	
Date/Time CV Reported Wed, 07/23/2008 9:44 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/23/2008 9:44 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Jennifer Lavelle	20760	933921	075 PCT
2. SGT Domenico Colavito	00355	883666	075 PCT
3. POM Thomas Fusco	09284	940918	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Domenico Colavito	Abuse: Sgt. Domenico Colavito stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.POF Jennifer Lavelle	Abuse: PO Jennifer Lavelle stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
C.POM Thomas Fusco	Abuse: PO Thomas Fusco stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
D.POM Thomas Fusco	Abuse: PO Thomas Fusco searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
E.SGT Domenico Colavito	Abuse: Sgt. Domenico Colavito searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
F.POF Jennifer Lavelle	Abuse: PO Jennifer Lavelle frisked § 87(2)(b)	
G.POF Jennifer Lavelle	Abuse: PO Jennifer Lavelle searched § 87(2)(b) and § 87(2)(b)	

Synopsis

§ 87(2)(b) filed this complaint with the Civilian Complaint Review Board on July 23, 2008 via telephone. On July 21, 2008, at approximately 9:20 PM, § 87(2)(b) was sitting in her vehicle with her friend, § 87(2)(b) outside of the Brooklyn Sports Club located at Seaview Avenue and Van Siclen Avenue in Brooklyn. § 87(2)(b) began to make an illegal U-Turn when she noticed a black Chevrolet Impala, license plate number § 87(2)(e), § 87(2)(b), put its lights on and pull her vehicle over. Three officers exited the vehicle, identified via investigation as Sgt. Domenico Colavito, PO Thomas Fusco and PO Jennifer Lavelle (Allegations A, B and C). PO Fusco approached § 87(2)(b)'s window and allegedly asked what she was doing that evening. § 87(2)(b) and § 87(2)(b) exited their vehicle and PO Fusco entered § 87(2)(b)'s vehicle and searched the front, back, glove compartment and console area of her vehicle. § 87(2)(b) stated that she observed both PO Fusco and Sgt. Colavito allegedly searching the vehicle (Allegations D and E). PO Lavelle then allegedly frisked § 87(2)(b) and searched both § 87(2)(b) and § 87(2)(b) (Allegations F and G). Sgt. Colavito then informed § 87(2)(b) that they had stopped her due to a rash of stolen vehicles in the area and the officers left the area.

§ 87(2)(g)
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Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female who is 5'6", 195 pounds with red hair and brown eyes. § 87(2)(b) was interviewed at the CCRB on August 7, 2008 (Encl 3-3c).

On July 21, 2008, § 87(2)(b) left her home to go pick up her friend, § 87(2)(b) at approximately 9:00 PM at a sports center on Seaview Avenue near Van Siclen Avenue. § 87(2)(b) was driving a 2001 black Dodge Intrepid. § 87(2)(b) entered the vehicle, and the two women sat there for ten minutes talking. After that time, § 87(2)(b) began to make an illegal U-Turn, and she noticed a black Impala coming in the other direction. As § 87(2)(b) made the U-turn, the Impala also made a U-turn and put on their flashing lights. § 87(2)(b) stopped the vehicle and she observed three officers inside the police vehicle. § 87(2)(b) assumed that these people were officers as they were in an Impala which § 87(2)(b) knows to be a police vehicle and they put on flashing lights. PO Fusco was a white male, 5'6"-7", medium build with short black hair wearing a T-shirt and jeans. Sgt. Colavito was a white or Hispanic male, 5'8" with a stocky build and curly grey hair wearing a T-shirt and jeans. PO Lavelle was a white female, 5'7", slim build with straight brunette hair wearing a T-shirt and jeans. The investigation determined the names of these officers as they matched the physical description given by § 87(2)(b) as well as being assigned to the vehicle that § 87(2)(b) recalled seeing. PO Fusco was the passenger in the vehicle, Sgt. Colavito was the driver and PO Lavelle was in the backseat. Initially when PO Fusco approached § 87(2)(b)'s window, § 87(2)(b) immediately handed him her license and registration. PO Fusco asked her what she was getting into that evening. § 87(2)(b) responded that she was not doing anything. PO Fusco then asked § 87(2)(b) and § 87(2)(b) to exit the vehicle, and he stated that he wanted to search the vehicle for weapons. § 87(2)(b) exited the vehicle without responding and she and § 87(2)(b) walked to the back of her vehicle where Sgt. Colavito and PO Lavelle were standing. § 87(2)(b) observed PO Fusco enter her vehicle and search the front and back of her car, including her glove compartment and console area. As this was occurring, PO Lavelle asked if § 87(2)(b) had any weapons and she responded that she did not. PO Lavelle searched the pockets of § 87(2)(b)'s pants and her waistband area. § 87(2)(b) stated that she was not patted down. PO Lavelle then searched the pockets of § 87(2)(b)'s dress. After this concluded Sgt. Colavito told § 87(2)(b) that there were a lot of stolen cars in the area and asked § 87(2)(b) if the car was hers and § 87(2)(b) responded that it was her mother's. PO Fusco then finished the search and the officers left the area.

As the officers left § 87(2)(b) was able to write down their license plate number which was § 87(2)(e), § 87(2)(b). The entire interaction lasted four minutes. § 87(2)(b) did not speak during this interaction.

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female who is 5'2", 196 pounds with red hair and brown eyes. § 87(2)(b) was interviewed at the CCRB on August 7, 2008 (Encl 4-4c).

On July 21, 2008, § 87(2)(b) had been working at out a sport center on Seaview Avenue and Van Siclen Street, and called her friend § 87(2)(b) for a ride home at approximately 8:30 PM. § 87(2)(b) picked § 87(2)(b) up and the two women sat in the car for ten minutes chatting. § 87(2)(b) was driving a black Dodge Stratus. As the women were sitting, a black unmarked car made a U-Turn and turned on flashing lights. § 87(2)(b)'s car was not running and they had not moved. There were three officers in the vehicle all dressed in plain clothes. PO Fusco was a white male, 5'8" with a medium build. § 87(2)(b) could only remember that Sgt. Colavito was a white male and PO Lavelle was either a white or Hispanic female, 5'5" with a slim build and blondish hair. PO Fusco approached, § 87(2)(b) and PO Fusco approached § 87(2)(b) on the passenger's side. When PO Fusco approached § 87(2)(b) immediately handed him her license and PO Fusco asked what they were doing out there and why they were sitting outside. § 87(2)(b) responded that the two women were just talking. Sgt. Colavito asked § 87(2)(b) where she was from and § 87(2)(b) responded that she was from Queens. PO Fusco said that there were a lot of stolen vehicles in the area, and asked both women to exit the vehicle, which they did. § 87(2)(b) and § 87(2)(b) went to the back of their vehicle. PO Fusco reiterated that there were a lot of stolen cars and he asked § 87(2)(b) questions about the ownership of her vehicle. PO Fusco then searched § 87(2)(b) and entered the pockets of her pants as well as patting her down. PO Lavelle asked § 87(2)(b) if she had anything on her. § 87(2)(b) responded that she did not but PO Lavelle searched § 87(2)(b) by entering the pockets that were on her dress and patted her down. PO Fusco and Sgt. Colavito then went back to § 87(2)(b)'s vehicle and looked inside with their flashlights. § 87(2)(b) stated that she believed the officers may have stuck their heads inside the vehicle but did not enter it with their bodies, nor did they open anything inside of the vehicle. PO Fusco then returned § 87(2)(b)'s license and the officers left the scene. The entire interaction lasted five minutes.

Identification of Officers Interviewed

§ 87(2)(b) stated that she was stopped by a black Chevrolet Impala with the license plate of § 87(2)(e), § 87(2)(b). On August 4, 2008, a phone call to Fleet Services determined that the car was assigned to the 75th Precinct and it is RMP # 8192. Based upon the roll call there were two officers assigned to RMP # § 87(2)(b) Sgt. Colavito and PO Lavelle. In addition, PO Lavelle is the only female officer assigned to the SNEU team. The descriptions given by § 87(2)(b) of PO Lavelle, a white female, 5'7", slim build with straight brunette hair, and of Sgt. Colavito, a white or Hispanic male, 5'8" with a stocky build and curly grey hair, matches their physical descriptions. PO Lavelle and Sgt. Colavito confirmed during their interviews that PO Fusco worked with them that evening, and he matches the description given by § 87(2)(b) as a white male, 5'6"-7", medium build with short black hair. Lastly, all three officers confirmed that they had patrolled the area of incident that evening, and a search of the Booking, Arraignment and Disposition System confirmed that the officers conducted many arrests in that vicinity that evening.

Officer Statements

PO Thomas Fusco

PO Fusco is a § 87(2)(b)-old white male, who is 5'9", 230 pounds with black hair and brown eyes. PO Fusco was interviewed at the CCRB on October 16, 2008 (Encl 5-5c). On July 21, 2008, PO Fusco worked from 3:00 PM until 11:35 PM. His assignment was SNEU team and he was partnered with Sgt. Colavito and PO Lavelle. He was not in uniform and assigned to an unmarked black Chevy impala RMP # § 87(2)(b) PO Fusco did not have any memo book entries regarding this incident.

PO Fusco was shown photographs of § 87(2)(b) and § 87(2)(b) as well as being told the salient details of the investigation, however, PO Fusco did not recall this incident. PO Fusco stated that his team had

made over twelve arrests that evening in the area but could not recall this incident. He stated that if had stopped anyone, he or his partners would have filled out a stop, question and frisk report. PO Fusco did not remember stopping § 87(2)(b) and § 87(2)(b). He did not recall anyone searching or frisking § 87(2)(b) or § 87(2)(b). PO Fusco did not recall anyone searching § 87(2)(b)'s vehicle or stopping § 87(2)(b)'s vehicle at all.

PO Jennifer Lavelle

PO Lavelle is a § 87(2)(b)-old white female, who is 5'8", 140 pounds with brown hair and brown eyes. PO Lavelle was interviewed at the CCRB on September 24, 2008 (Encl 6-6c). On July 21, 2008, PO Lavelle worked from 3:00 PM until 11:35 PM. Her assignment was SNEU team and she was partnered with Sgt. Colavito and PO Fusco. She was not in uniform and assigned to an unmarked black Chevy impala RMP #§ 87(2)(b). PO Lavelle did not have any memo book entries regarding this incident.

PO Lavelle was shown photographs of § 87(2)(b) and § 87(2)(b) as well as being told the salient details of the investigation, however, PO Lavelle did not recall this incident. PO Lavelle stated that her team had made over twelve arrests that evening in the area but could not recall this incident. She stated that if she had stopped anyone, she or her partners would have filled out a stop, question and frisk report. PO Lavelle did not remember stopping § 87(2)(b) and § 87(2)(b). She did not recall anyone searching or frisking § 87(2)(b) or § 87(2)(b). PO Lavelle did not recall anyone searching § 87(2)(b)'s vehicle either.

Sgt. Domenico Colavito

Sgt. Colavito is a § 87(2)(b)-old white male, who is 6'0", 205 pounds with grey hair and brown eyes. Sgt. Colavito was interviewed at the CCRB on September 24, 2008 (Encl 7-7c). On July 21, 2008, Sgt. Colavito worked from 2:50 PM until 11:44 PM. His assignment was SNEU team supervisor for sector three and he was partnered with PO Lavelle and PO Fusco. He was not in uniform and assigned to an unmarked black Chevy impala RMP #§ 87(2)(b). Sgt. Colavito did not have any memo book entries regarding this incident.

Sgt. Colavito was shown photographs of § 87(2)(b) and § 87(2)(b) as well as being told the salient details of the investigation, however, Sgt. Colavito did not recall this incident. Sgt. Colavito stated that his team had made over ten arrests that evening in the area but could not recall this incident. He stated that if had stopped anyone, he or his subordinates would have filled out a stop, question and frisk report. In addition, he stated that if he had stopped a vehicle for making an illegal U-Turn he would have issued a summons. Sgt. Colavito stated that when he is executing a SNEU set he documents who he stopped and where. Sgt. Colavito did not remember stopping § 87(2)(b) and § 87(2)(b). He did not recall anyone searching or frisking § 87(2)(b) or § 87(2)(b). Sgt. Colavito did not recall anyone searching § 87(2)(b)'s vehicle either.

Police Department Documents

Roll Call

The roll call for the 75th Precinct on July 21, 2008 indicates that Sgt. Colavito, PO Lavelle and PO Fusco were assigned to the SNEU team, and that Sgt. Colavito and PO Lavelle were assigned to RMP #§ 87(2)(b) (Encl 8-8a).

BADS Report

The BADS report for arrests conducted on July 21, 2008 indicates that PO Fusco and the 75th Precinct made many arrests that evening in the vicinity of the alleged incident (Encl 9-9a).

Fleet Service

The check of the fleet service database identifies the vehicle with the license plate number § 87(2)(e), § 87(2)(b) as being assigned to the 75th Precinct and given the RMP #§ 87(2)(b) (Encl 10-10a).

Police Office CCRB History

PO Fusco does not have any previously substantiated CCRB allegations. PO Fusco has two-year tenure with the NYPD. § 87(2)(g), § 87(4-b)

PO Lavelle has four-years tenure with the NYPD § 87(2)(g), § 87(4-b)

Sgt. Colavito has twenty-four-years tenure with the NYPD (Encl 1-1d).

Complainant CCRB History

§ 87(2)(b) and § 87(2)(b) have not participated in any previous CCRB cases (Encl 1e-1f).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Identification of Subject Officers

§ 87(2)(b) stated that she was stopped by a black Chevrolet Impala with the license plate of § 87(2)(e), § 87(2)(b). On August 4, 2008, a phone call to Fleet Services determined that the car was assigned to the 75th Precinct and it is RMP # § 87(2)(b). Based upon the roll call there were two officers assigned to RMP # § 87(2)(b) Sgt. Colavito and PO Lavelle. In addition, PO Lavelle is the only female officer assigned to the SNEU team. The description given by § 87(2)(b) of PO Lavelle, a white female, 5'7", slim build with straight brunette hair, and of Sgt. Colavito, a white or Hispanic male, 5'8" with a stocky build and curly grey hair, matches their physical descriptions. PO Lavelle and Sgt. Colavito confirmed during their interviews that PO Fusco worked with them that evening, and he matches the description given by § 87(2)(b) as a white male, 5'6"-7", medium build with short black hair. Lastly, all three officers confirmed that they had patrolled the area of incident that evening, and a search of the Booking, Arraignment and Disposition System confirmed that the officers conducted many arrests in that vicinity that evening. § 87(2)(g)

Disputed/Undisputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that she was stopped by three officers after making an illegal U-Turn. § 87(2)(g)

The three officers who stopped § 87(2)(b) did not recall this incident. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) alleged that they were stopped by PO Fusco, PO Lavelle and Sgt. Colavito. They stated that they were both searched and their vehicle was searched. All three officers do not recall this incident, however, it was confirmed that these officers were the subject officers based on physical descriptions as well as vehicle identification. In addition, these three officers all admit to being in the area of the alleged incident on that evening. § 87(2)(b) admitted to sitting in her vehicle with § 87(2)(b) for approximately ten minutes prior to making an illegal U-Turn and driving away. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) alleged that PO Fusco and not PO Lavelle frisked and searched § 87(2)(b) however, § 87(2)(b) alleged that PO Lavelle searched her and not PO Fusco. In addition, § 87(2)(b) stated that she was not frisked. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation A: Abuse of Authority: Sgt. Domenico Colavito stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority: PO Jennifer Lavelle stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C: Abuse of Authority: PO Thomas Fusco stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) alleged that she was stopped in her vehicle by Sgt. Colavito, PO Fusco and PO Lavelle. These three officers did not recall this interaction. § 87(2)(b) stated that immediately prior to being stopped she had driven and made an illegal U-Turn. According to Kamins' New York Search and Seizure "Once a police officer observes a traffic infraction that will be sufficient to constitute probable cause. A group of Vehicle and Traffic Law violations relates to traffic infractions committed by a motorist in the presence of police officers. These include a motorist who makes an unsafe U-turn" (Encl 1-1b). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Allegation D: Abuse of Authority: PO Thomas Fusco searched the car in which § 87(2)(b) was an occupant.

Allegation E: Abuse of Authority: Sgt. Domenico Colavito searched the car in which § 87(2)(b) was an occupant.

Allegation F: Abuse of Authority: PO Jennifer Lavelle frisked § 87(2)(b)

Allegation G: Abuse of Authority: PO Jennifer Lavelle searched § 87(2)(b) and § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that her vehicle was searched by PO Fusco and that she and § 87(2)(b) were searched by PO Lavelle. § 87(2)(b) stated that Sgt. Colavito searched § 87(2)(b)'s vehicle as well and that she was frisked by PO Lavelle. All three officers did not recall this incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: